

1 ENGROSSED HOUSE
2 BILL NO. 3701

By: Caldwell (Chad) of the
House

3 and

4 Seifried of the Senate
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6 An Act relating to higher education; requiring all
7 academic programs be reviewed on a five-year cycle
8 for quality and currency; directing a review of a
9 program if classified as a low-producing program;
10 defining low-producing program; requiring the
11 Oklahoma State Board of Regents for Higher Education
12 to conduct an annual review of low-producing programs
13 for deletion, suspension, or continuation; providing
14 exemptions for continuation of low-producing
15 programs; providing for probationary period for
16 certain low-producing programs; requiring programs
17 submit a plan of improvement; directing suspended or
18 deleted programs to complete process within one
19 academic year; requiring review after completion of
20 probationary period; prohibiting low-producing
21 programs from receiving more than two exemptions in a
22 consecutive ten-year period; providing for
23 codification; and declaring an emergency.
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17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 3252 of Title 70, unless there
20 is created a duplication in numbering, reads as follows:

21 A. The Oklahoma State Regents for Higher Education shall
22 require all academic programs be reviewed by faculty on a five-year
23 cycle to ensure quality and currency of each program's content. If
24 a program is classified as a low-producing program, the

1 classification shall trigger an early review by the Oklahoma State
2 Board of Regents for Higher Education.

3 B. A "low-producing program" means a program that does not meet
4 the following minimum standards during a five-year average for the
5 degree plan:

6 1. Associate in Arts or Sciences has:

- 7 a. less than five (5) degrees conferred, or
- 8 b. less than twenty-five (25) majors enrolled;

9 2. Associate in Applied Science has:

- 10 a. less than five (5) degrees conferred, or
- 11 b. less than seventeen (17) majors enrolled;

12 3. Baccalaureate has:

- 13 a. less than five (5) degrees conferred, or
- 14 b. less than twelve (12) majors enrolled;

15 4. Masters has:

- 16 a. less than three (3) degrees conferred, or
- 17 b. less than six (6) majors enrolled; and

18 5. Doctoral has:

- 19 a. less than two (2) degrees conferred, or
- 20 b. less than four (4) majors enrolled.

21 C. The State Board of Regents shall conduct an annual review of
22 low-producing programs for each of its member colleges and
23 universities.

1 D. Low-producing programs shall be reviewed by the State Board
2 of Regents for deletion, suspension, or continuation. Programs may
3 qualify for continuation if the programs qualify under one of the
4 following exceptions:

5 1. No cost - The program has no cost to the university;

6 2. Shared cost - The program shares costs and resources with
7 other non-low-producing programs or receives support from external,
8 non-state funding sources;

9 3. Restructured programs - The program was recently reinstated
10 after suspension for significant curriculum modifications aimed at
11 enhancing productivity;

12 4. Collaborative programs - The program is currently offered in
13 collaboration with other institutions or the institution intends to
14 pursue collaborative opportunities; or

15 5. Grow the program - The program has an established or
16 developing strategic plan specifically designed to achieve minimum
17 productivity standards.

18 E. Programs identified as low-producing and granted an
19 exemption to continue shall be placed on probationary status for
20 three (3) years. Programs placed on probationary status shall
21 submit a plan of improvement to the State Board of Regents for
22 approval. Failure to meet or demonstrate progress towards minimum
23 productivity standards as noted in the plan of improvement within
24 the three-year period shall lead to action by the State Board of

1 Regents to delete or suspend the program. Programs selected for
2 suspension shall complete the process within one (1) academic year.
3 Programs selected for deletion have one (1) academic year to develop
4 a teach-out plan and submit the required documentation.

5 F. Upon completion of the probationary period, programs shall
6 be reviewed by the State Board of Regents the year following the
7 conclusion of the probationary period.

8 G. Any program that is classified as a low-producing program
9 shall receive no more than two (2) exemptions from paragraphs 2
10 through 5 of subsection D of this section in a consecutive ten-year
11 period and shall be scheduled for deletion upon being classified an
12 additional time as a low-producing program within the ten-year
13 period.

14 SECTION 2. It being immediately necessary for the preservation
15 of the public peace, health or safety, an emergency is hereby
16 declared to exist, by reason whereof this act shall take effect and
17 be in full force from and after its passage and approval.

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Passed the House of Representatives the 10th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the ____ day of _____, 2026.

Presiding Officer of the Senate